

For the foregoing reasons, the demurrers are, each, SUSTAINED.

3. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Plaintiff to show in what manner it can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

As County Defendants and Bonny's note, Petitioner has now had four attempts at stating a good claim in this action. While Petitioner requests leave to amend through its Opposition briefs, it makes no effort to suggest in what manner it can amend to state a good claim. Based on the nature of the allegations in the TAP, the arguments advanced through the Opposition, and the history of the pleading in this action, it is entirely unclear, to the Court, how Petitioner could amend the TAP to state any valid claim.

Based on the foregoing, the demurrers are, each, SUSTAINED WITHOUT LEAVE TO AMEND.

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In the Matter of Sara Perez

26CV001110

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....
In The Matter of Ricardo Efren Ponce Rico

26CV001306

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 23, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A to provide any publisher time to file the POP.

****at 9:30 a.m.****

Balcal Construction, Inc. et al v. Reynolds Law, LLP et al

24CV001476

[1] DEFENDANTS REYNOLDS LAW LLP AND ALFONSO LUIS POIRE'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendants Reynolds Law LLP and Alfonso Luis Poiré (collectively, "Defendants") move, pursuant to Code of Civil Procedure section 437c,⁵ for an order granting summary judgment in favor of Defendants and against Plaintiffs Balcal Construction Inc., Cruz Calderon, and Maximino Ballines (collectively, "Plaintiffs"). Defendants so move "on the grounds on the grounds that each of Plaintiffs' causes of action against Defendants in this action fail as Plaintiffs cannot establish the required elements of duty and breach because Plaintiffs claims are premised upon conduct by Defendants that met the professional standard of care, and Plaintiffs' causes of action fail because Plaintiffs also cannot establish the required elements of causation or damages because they cannot prove that Plaintiffs would have obtained a better result in the underlying action." (Notice of Motion, 2:8-13.)

B. LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit." (§ 437c, subd. (a)(1).) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "'Material facts' are facts that relate to the cause of action...that is the subject of the motion and that could make a difference in the disposition of the motion." (Rules of Court, rule 3.1350(a)(2).)

The moving party also bears an initial burden of production. A moving defendant may satisfy this burden by making a prima-facie showing of either: a) the nonexistence of any triable issue of material fact relating to one or more elements of the plaintiff's claims; or b) every element of an affirmative defense. "Summary judgment in favor of the defendant will be upheld when the evidentiary submissions conclusively negate a necessary element of the plaintiff's cause of action or show that under no hypothesis is there a material issue of fact requiring the

⁵ All subsequent statutory references are to the Code of Civil Procedure, unless otherwise specified.